

IN THE SENATE

SENATE BILL NO. 1275

BY COMMERCE AND HUMAN RESOURCES COMMITTEE

AN ACT

RELATING TO THE PUBLIC EMPLOYEE RETIREMENT SYSTEM; PROVIDING LEGISLATIVE INTENT; REPEALING SECTION 33-2144, IDAHO CODE, RELATING TO DISBURSEMENT TO THE PUBLIC EMPLOYEE RETIREMENT FUND; REPEALING SECTION 59-1324, IDAHO CODE, RELATING TO THE TRANSFER OF MONEYS FROM THE STATE COMMUNITY COLLEGE ACCOUNT; REPEALING SECTION 59-1381, IDAHO CODE, RELATING TO THE MERGER OF CITY SYSTEMS INTO A STATE EMPLOYEE SYSTEM; REPEALING SECTION 59-1382, IDAHO CODE, RELATING TO CITY ORDINANCE ELECTING MERGER AND CONTRACTING WITH THE BOARD; REPEALING SECTION 59-1383, IDAHO CODE, RELATING TO THE TRANSFER OF ASSETS, LIABILITIES, DUTIES, AND RIGHTS TO THE STATE EMPLOYEE SYSTEM; REPEALING SECTION 59-1384, IDAHO CODE, RELATING TO BENEFITS NOT REDUCED; REPEALING SECTION 59-1385, IDAHO CODE, RELATING TO CONTRIBUTIONS BY AN EMPLOYER, ADJUSTMENTS TO EQUALIZE BENEFITS PAYABLE AND ASSETS TRANSFERRED, AND CORPORATE TAX BY THE CITY TO PAY CONTRIBUTIONS; REPEALING SECTION 59-1396, IDAHO CODE, RELATING TO THE LIMIT ON SEPARATION BENEFIT; REPEALING SECTION 59-1397, IDAHO CODE, RELATING TO BENEFITS PAYABLE; REPEALING SECTION 59-1399, IDAHO CODE, RELATING TO THE COOPERATION OF THE STATE INSURANCE FUND; AMENDING SECTION 33-2101A, IDAHO CODE, TO REMOVE CODE REFERENCES; AMENDING SECTION 59-1316, IDAHO CODE, TO REMOVE A CODE REFERENCE; AMENDING SECTION 59-1391, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 59-1394, IDAHO CODE, TO REVISE PROVISIONS REGARDING CONTRIBUTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. IDAHO CODE CLEANUP -- LEGISLATIVE INTENT. It is the intent of the Legislature to ensure that the state laws provided in Idaho Code are streamlined, up-to-date, and essential for the citizens of Idaho, while best serving the public health, safety, and welfare. In accordance with the Idaho Code Cleanup Act, following comprehensive review, the Legislature has identified the provisions of this act as obsolete, outdated, or unnecessary.

SECTION 2. That Section [33-2144](#), Idaho Code, be, and the same is hereby repealed.

SECTION 3. That Section [59-1324](#), Idaho Code, be, and the same is hereby repealed.

SECTION 4. That Section [59-1381](#), Idaho Code, be, and the same is hereby repealed.

SECTION 5. That Section [59-1382](#), Idaho Code, be, and the same is hereby repealed.

1 SECTION 6. That Section [59-1383](#), Idaho Code, be, and the same is hereby
2 repealed.

3 SECTION 7. That Section [59-1384](#), Idaho Code, be, and the same is hereby
4 repealed.

5 SECTION 8. That Section [59-1385](#), Idaho Code, be, and the same is hereby
6 repealed.

7 SECTION 9. That Section [59-1396](#), Idaho Code, be, and the same is hereby
8 repealed.

9 SECTION 10. That Section [59-1397](#), Idaho Code, be, and the same is hereby
10 repealed.

11 SECTION 11. That Section [59-1399](#), Idaho Code, be, and the same is hereby
12 repealed.

13 SECTION 12. That Section 33-2101A, Idaho Code, be, and the same is
14 hereby amended to read as follows:

15 33-2101A. JUNIOR COLLEGE SHALL MEAN COMMUNITY COLLEGE. Notwithstand-
16 ing any other provision of law, in sections 21-805, 21-806, 21-809, 23-404,
17 33-101, 33-107, 33-107B, 33-601, 33-1252, 33-2101, 33-2102, 33-2103,
18 33-2104, 33-2105, 33-2106, 33-2107, 33-2107A, 33-2107B, 33-2107C, 33-2108,
19 33-2109A, 33-2110, 33-2110A, 33-2110B, 33-2111, 33-2112, 33-2113, 33-2114,
20 33-2115, 33-2116, 33-2117, 33-2118, 33-2119, 33-2121, 33-2122, 33-2123,
21 33-2124, 33-2125, 33-2126, 33-2130, 33-2135, 33-2137, 33-2138, 33-2139,
22 33-2141, 33-2142, 33-2143, ~~33-2144~~, 33-2211, 33-3716, 33-4001, 33-4003,
23 33-4004, 33-4006, 33-4201, 46-314, 50-1721, 57-1105A, ~~59-1324~~, 67-2320,
24 67-2322 and 67-5332, Idaho Code, the term "junior college" shall mean and
25 shall be denoted as "community college."

26 SECTION 13. That Section 59-1316, Idaho Code, be, and the same is hereby
27 amended to read as follows:

28 59-1316. MEMBER'S RETIREMENT RECORDS CONFIDENTIAL -- PENALTY FOR DI-
29 VULGING INFORMATION. (1) Each member shall furnish the board with such in-
30 formation as the board shall deem necessary for the proper operation of the
31 system. As provided in section 74-106, Idaho Code, information contained in
32 the retirement system mortgage portfolio loan documents and in each member's
33 retirement system records is confidential and may not be divulged except as
34 ordered by a court or except as may be required by the employer member or by
35 the retirement board and its staff in order to carry into effect the purposes
36 of this chapter.

37 (2) A member may by his written authorization release specific infor-
38 mation from his own retirement system records to a stated designee. If the
39 member is deceased, the member's contingent annuitant or beneficiary may by
40 written authorization release specific information from the member's re-
41 tirement system records to a stated designee.

1 (3) The retirement system may disclose the identity of a deceased mem-
 2 ber's beneficiary to the member's spouse, children, and the court-appointed
 3 administrator of the member's estate.

4 (4) Should a court order direct distribution or partial distribution of
 5 a member's benefit as defined in either chapter 13, title 59, Idaho Code, or
 6 chapter 14, title 72, Idaho Code, to the member's spouse or former spouse,
 7 the system may release to the spouse, former spouse, or the court issuing the
 8 order information pertaining to the division or segregation of the member's
 9 accounts or benefit. This information includes account balances, service
 10 accumulations, and related information and histories, but does not include
 11 current addresses and phone numbers. The system may release the same in-
 12 formation to a member's current spouse at any time, regardless of whether a
 13 court has ordered a distribution or division of the member's account.

14 (5) No board member, director, deputy, employee, contractor, or any
 15 person formerly employed in any such position shall knowingly divulge or
 16 make known to any person in any manner any member's retirement system records
 17 obtained directly or indirectly in the discharge of duties except as pro-
 18 vided by statute, court order, or rules of the retirement system promulgated
 19 under this section or sections 50-1507, 50-1508, 50-1524, 59-1301, 59-1314,
 20 ~~59-1383~~, 59-1392, 72-1405, Idaho Code.

21 (6) Any board member, director, deputy, employee, contractor, or any
 22 person formerly employed in any such position who knowingly violates any of
 23 the provisions of this section shall be guilty of a felony and, upon convic-
 24 tion, shall be punished by a fine of not less than one hundred dollars (\$100)
 25 nor more than five thousand dollars (\$5,000) or by imprisonment for not more
 26 than five (5) years. Upon such conviction, such person shall also forfeit
 27 his office, employment, or contract, if any, and shall be ineligible to hold
 28 any public office in this state for a period of two (2) years. Nothing in
 29 this subsection shall limit the retirement system's ability to take any and
 30 all disciplinary actions authorized pursuant to chapter 53, title 67, Idaho
 31 Code.

32 SECTION 14. That Section 59-1391, Idaho Code, be, and the same is hereby
 33 amended to read as follows:

34 59-1391. DEFINITIONS. As used in sections 59-1391 through and includ-
 35 ing ~~59-1399~~ 59-1398, Idaho Code, each of the terms defined shall have the
 36 meaning given in this section or in section 59-1302, Idaho Code, unless a
 37 different meaning is clearly required by the context.

38 (a) "Board" means the retirement board of the employee system.

39 (b) "Firefighter member" means a person or beneficiary who, prior to
 40 October 1, 1980, was receiving benefits or establishing the right to receive
 41 benefits from the firefighters' retirement fund.

42 (c) "Firefighters' retirement fund" means the retirement system cre-
 43 ated by and existing pursuant to chapter 14, title 72, Idaho Code.

44 (d) "Employee system" means the retirement system created and existing
 45 pursuant to chapter 13, title 59, Idaho Code.

46 (e) "Employer" means a city or fire district that employs paid fire-
 47 fighters who are participating in the firefighters' retirement fund on Octo-
 48 ber 1, 1980.

1 (f) "Paid firefighter" means any individual, male or female, excluding
 2 office secretaries on the payroll of any city or fire district in the state
 3 of Idaho who devotes his or her principal time of employment to the care, op-
 4 eration, maintenance or the requirements of a regularly constituted fire de-
 5 partment of such city or fire district in the state of Idaho.

6 SECTION 15. That Section 59-1394, Idaho Code, be, and the same is hereby
 7 amended to read as follows:

8 59-1394. EXCESS COSTS -- ADDITIONAL CONTRIBUTIONS. (1) In addition
 9 to the employee and employer contributions required by chapter 14, title
 10 72, Idaho Code, additional contributions shall be required to fund the pro-
 11 visions of ~~section 59-1397, Idaho Code~~ this section. These costs shall be
 12 borne by employers and by the state of Idaho as hereinafter provided.

13 (a) Fifty percent (50%) of the gross receipts by the state of the tax on
 14 fire insurance premiums, as provided by section 41-402, Idaho Code, is
 15 hereby perpetually appropriated to the public employee retirement ac-
 16 count for the purpose of partially funding the benefit payment require-
 17 ments imposed by the provisions of chapter 14, title 72, Idaho Code.

18 (b) The board shall conduct studies from time to time ~~of the benefits~~
 19 ~~prescribed by section 59-1397, Idaho Code,~~ to determine the additional
 20 contributions required to fund the rights conferred by chapter 14,
 21 title 72, Idaho Code, above and beyond the initial contribution from
 22 the fire insurance premium tax required by subsection (1) (a) of this
 23 section. If such studies indicate the value of the benefits exceeds
 24 the required contributions otherwise prescribed, the board shall es-
 25 tablish an additional contribution rate necessary to bring the amounts
 26 into balance. The cost of such additional contribution shall be borne
 27 equally by the employers through additional contributions and the state
 28 of Idaho through the fire insurance premium tax. In addition to appro-
 29 priation of the fire insurance premium tax contained in subsection (1)
 30 (a) of this section, the amount of the gross receipts by the state of the
 31 tax on fire insurance premiums, as provided by section 41-402, Idaho
 32 Code, necessary to match dollar for dollar the additional contribution
 33 required of employers is hereby perpetually appropriated commencing
 34 July 1, 1980 to the public employee retirement account for the purpose
 35 of subsection (1) (b) of this section. If the matching funds herein
 36 provided equal one hundred percent (100%) of the gross receipts from the
 37 fire insurance premium tax, the employers shall contribute the balance
 38 of the monies required to meet the required contribution rate. The
 39 additional contribution rate from the employers commencing October 1,
 40 1980 shall be ten percent (10%) of the pay period salary of each paid
 41 firefighter until next determined by the board.

42 (2) Nothing herein contained shall prevent the board from contracting
 43 with employers to provide a schedule of contributions which will retire any
 44 excess cost over a given period of time, not to exceed fifty (50) years. In
 45 the event that such agreements are reached, the amount of the fire insurance
 46 premium tax necessary to match additional employer contributions is contin-
 47 uously appropriated for that purpose.

1 SECTION 16. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.